AUTHORISATION, SITE ACCESS AND RISK ALLOCATION AGREEMENT

Date: [DD/MM/YYYY]
Reference No.: [REFERENCE NUMBER]

This Agreement is made between:

A. Client/property representative

Name/Company: [CLIENT OR COMPANY NAME]
Company Registration No.: [REGISTRATION NUMBER]
Property/Building: [BUILDING NAME]
Property Address: [FULL ADDRESS]
Authorised Representative: [NAME]
Designation: [POSITION]
Contact Number: [TELEPHONE NUMBER]

Hereinafter referred to as the **"Client"**;

AND

B. Contractor

Company: SERI N.S SDN. BHD.
Company Registration No.: [REGISTRATION NUMBER]
Address: [COMPANY ADDRESS]
Person in Charge: [NAME AND POSITION]
Contact Number: [TELEPHONE NUMBER]

Hereinafter referred to as the **"Contractor"**.

1. Client's authority

The Client represents and warrants that it is the lawful owner, occupier, property manager or duly authorised representative of the property and possesses full authority to:

1. Grant the Contractor access to the property;
2. Approve the proposed works;
3. Establish or approve temporary exclusion zones;
4. Authorise the operation of drones and related cleaning equipment from the property; and
5. Accept the terms and risk allocations contained in this Agreement.

The Client shall indemnify the Contractor against claims resulting from the Client's lack of authority to approve the works or grant access to the property.

2. Authorised work

The Client authorises the Contractor, its employees, drone pilots, technicians, agents and approved subcontractors to enter the property and carry out the following:

Service: [DRONE FAÇADE / EXTERNAL GLASS / SOLAR-PANEL CLEANING]
Work Area: [IDENTIFY THE APPROVED AREAS]
Scheduled Date: [START DATE] to [COMPLETION DATE]
Permitted Hours: [START TIME] to [END TIME]

The authorised activities may include:

1. Site inspection and condition assessment;
2. Drone operation and test flights;
3. Application of water, pure water and approved cleaning solutions;
4. Operation of pumps, hoses, generators, water-treatment systems and related equipment;
5. Temporary placement of water tanks, hose reels, barriers and equipment;
6. Establishment and control of exclusion zones;
7. Temporary restriction of pedestrian and vehicle access;
8. Photography and video recording for operational, evidentiary, safety and reporting purposes; and
9. Other activities reasonably necessary to complete the agreed scope.

3. Site access and cooperation

The Client shall provide the Contractor with safe and uninterrupted access to all agreed work areas, loading areas, water points, electrical supplies and equipment-positioning areas.

The Client shall:

1. Notify tenants, employees, occupants, visitors, security personnel and other affected parties before work begins;
2. Prevent unauthorised persons and vehicles from entering the exclusion zone;
3. Remove or protect vehicles, furniture, equipment, merchandise and other property located within the work area;
4. Provide access cards, security clearance, parking and building-management approval where required;

5. Disclose all known hazards, fragile surfaces, electrical equipment, overhead services, water-entry points and existing building defects; and
6. Appoint an authorised representative who will be available throughout the operation.

Any delay, standby time or additional work caused by the Client's failure to fulfil these requirements may be charged separately by the Contractor.

4. Existing conditions and concealed defects

Before work begins, the Client shall disclose any known defects affecting the property, including:

- Loose or deteriorated paint;
- Cracked or inadequately secured glass;
- Failed sealant or waterproofing;
- Corroded fixtures;
- Loose tiles, cladding or signage;
- Water leakage or existing water ingress;
- Damaged solar panels or electrical equipment;
- Unstable building components; and
- Surfaces previously damaged by chemicals, weathering or inadequate maintenance.

The Contractor shall not be responsible for damage, detachment, leakage, discolouration or deterioration arising from:

1. A pre-existing or concealed defect;
2. Normal wear and tear;
3. A surface that was already loose, brittle, corroded, improperly installed or inadequately maintained;
4. Incorrect or incomplete information supplied by the Client;
5. Failure by the Client to identify sensitive areas or equipment; or
6. The ordinary and reasonably foreseeable effect of applying the cleaning method approved following the test-cleaning process.

Photographs and videos captured before the work may be used as evidence of the property's pre-existing condition.

5. Test cleaning and surface acceptance

Where practicable, the Contractor may conduct a test cleaning on a selected area.

Once the Client or its representative approves the test area, the approved method shall be considered acceptable for comparable surfaces within the agreed scope.

The Contractor does not guarantee the complete removal of permanent stains, oxidation, rust penetration, cement deposits, paint deterioration, silicone staining, mineral etching, scratches, biological growth embedded in porous materials or contamination requiring specialist restoration.

Variations in colour or appearance caused by uneven ageing, previous repairs, different materials or historical exposure are not considered defects in the Contractor's work.

6. Operational and weather decisions

The Contractor shall have sole operational authority over its drone, cleaning system and personnel.

The Contractor may suspend, postpone, modify or terminate the operation where it reasonably considers that:

1. Weather or wind conditions are unsuitable;
2. Lightning, rain or reduced visibility creates a risk;
3. Members of the public enter the exclusion zone;
4. The property contains an undisclosed hazard;
5. Safe access or adequate site control is unavailable;
6. The Client fails to comply with safety instructions;
7. Equipment malfunction occurs; or
8. An aviation, government or building-management restriction prevents the work.

A suspension or postponement made for safety, weather, regulatory or site-control reasons shall not constitute a breach by the Contractor.

Additional mobilisation, standby, accommodation, transportation, permit or rescheduling costs may be charged where the circumstances are outside the Contractor's reasonable control.

7. Regulatory approvals

The Client's signature grants property and site access only. It does not replace any approval required from CAAM, a local authority, building management or another regulatory body.

The Contractor shall manage approvals expressly included within its accepted quotation. The Client shall promptly provide supporting letters, property-owner consent, site information and other documents required for an application.

Approval timelines controlled by government agencies or third parties are outside the Contractor's control.

8. Client-requested changes

Any instruction that changes the work area, cleaning method, surface type, operating period or required deliverable shall constitute a variation.

The Contractor may:

1. Issue an additional quotation;
2. Extend the completion period; and
3. Suspend the affected work until the variation is approved in writing.

Verbal instructions will not bind the Contractor unless subsequently confirmed in writing.

9. Charges, deposits and payment

The Client shall pay:

- Cleaning charges: RM [AMOUNT]
- Deployment/mobilisation charges: RM [AMOUNT]
- Other approved charges: RM [AMOUNT]
- Applicable SST: RM [AMOUNT]
- **Total contract value: RM [AMOUNT]**

A deposit of **[50]%** shall be payable upon acceptance. The balance shall be payable within **[7/14/30] days** from the invoice date.

The Contractor may suspend mobilisation or work if any deposit, progress claim or invoice remains unpaid.

Late payments may be subject to interest at **1% per month**, calculated daily, or the maximum amount permitted by law, whichever is lower.

The Client shall be responsible for reasonable costs incurred by the Contractor in recovering overdue payments, subject to applicable law.

10. Cancellation and rescheduling

Where the Client cancels or postpones the operation:

1. More than seven days before mobilisation: documented non-recoverable costs shall be payable;
2. Between two and seven days before mobilisation: a rescheduling or cancellation fee of **[20]%** may be charged; and
3. Less than 48 hours before mobilisation or after mobilisation has commenced: the deployment charge and documented committed costs shall remain payable.

No cancellation fee shall apply where the Contractor cancels the work without reasonable cause.

11. Limitation of liability

To the maximum extent permitted by Malaysian law:

1. The Contractor shall not be liable for indirect, incidental, special or consequential loss;
2. The Contractor shall not be liable for loss of profit, loss of business, loss of rental income, loss of production, business interruption or reputational loss;
3. The Contractor shall not be liable for damage caused by undisclosed defects, inaccurate information, unauthorised entry into the exclusion zone or the acts of the Client or third parties; and
4. The Contractor's total aggregate liability arising from the work shall not exceed the amount actually paid to the Contractor for the specific work giving rise to the claim.

Nothing in this Agreement excludes liability that cannot lawfully be excluded, including liability arising from the Contractor's fraud or wilful misconduct.

12. Client indemnity

To the maximum extent permitted by law, the Client shall indemnify the Contractor, its directors, employees, pilots and subcontractors against third-party claims, losses, damages, penalties and reasonable costs arising from:

1. The Client's breach of this Agreement;
2. Inaccurate or incomplete information supplied by the Client;
3. The Client's failure to notify occupants or control the work area;
4. Unauthorised persons or vehicles entering the exclusion zone;
5. Undisclosed building defects or hazardous conditions;
6. Property left within an area the Client was instructed to clear or protect; or

7. The Client's lack of authority to approve the works.

This indemnity shall not apply to the extent that a claim is directly caused by the Contractor's proven negligence, fraud or wilful misconduct.

13. Reporting of damage or complaints

The Client shall inspect the completed work promptly.

Any complaint concerning visible damage or incomplete work must be notified to the Contractor in writing, with photographs and supporting details, within **three working days** after completion or discovery.

The Client shall give the Contractor a reasonable opportunity to inspect and, where appropriate, rectify the matter before appointing another contractor.

This clause does not shorten any mandatory statutory period that cannot legally be restricted.

14. Photography and records

The Client authorises the Contractor to capture photographs and video for:

- Site assessment;
- Drone navigation;
- Safety monitoring;
- Progress records;
- Before-and-after evidence;
- Insurance and incident reporting; and
- Completion documentation.

The Contractor shall not use identifiable confidential information or images for public marketing without the Client's separate written approval.

15. Force majeure

The Contractor shall not be liable for delay or failure caused by circumstances beyond its reasonable control, including severe weather, lightning, flood, fire, equipment import delays, regulatory restrictions, government action, civil disturbance, utility interruption, site closure or denial of access.

The completion period shall be reasonably extended for the duration and effect of such circumstances.

16. Entire agreement and priority

This Agreement shall be read together with the Contractor's accepted quotation, scope of work, method statement and approved variation orders.

If there is an inconsistency, the following order of priority shall apply:

1. A subsequently signed variation;
2. This Agreement;
3. The accepted quotation;
4. The method statement; and
5. Other project correspondence.

Any Client purchase-order term that materially changes the Contractor's liability or payment rights shall not apply unless expressly accepted in writing by an authorised director of the Contractor.

17. Severability and waiver

If any provision is found invalid or unenforceable, the remaining provisions shall continue in effect.

A failure or delay by the Contractor in exercising any right shall not constitute a waiver of that right.

18. Governing law and jurisdiction

This Agreement shall be governed by the laws of Malaysia.

The parties shall first attempt to resolve any dispute through good-faith negotiation. If the dispute is not resolved, it shall be submitted to the courts of Malaysia, subject to any written agreement between the parties to use mediation or arbitration.

19. Acceptance and authorisation

By signing below, the Client confirms that:

1. The Client has read and understood this Agreement;
2. The Client has authority to approve the works;
3. The information supplied to the Contractor is accurate and complete;
4. The Contractor is authorised to enter and operate at the property; and
5. The Client agrees to the responsibilities, limitations and risk allocations stated above.

Signed for the Client

Name: _____

NRIC/Passport No.: _____

Designation: _____

Company: _____

Signature: _____

Company Stamp:

Date: _____

Signed for SERI N.S SDN. BHD.

Name: _____

Designation: _____

Signature: _____

Company Stamp:

Date: _____